

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB2015 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____
Amendment submitted by: Daniel Pae _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 2015

By: Pae of the House

and

Gollihare of the Senate

FLOOR SUBSTITUTE

An Act relating to landlord and tenant; amending 41 O.S. 2021, Section 121, as amended by Section 1, Chapter 230, O.S.L. 2022 (41 O.S. Supp. 2025, Section 121), which relates to landlord's breach of a rental agreement; providing a tenant may bring an action to enforce an obligation of a landlord; providing guidelines on when a tenant can bring an action to enforce an obligation of a landlord; providing types of relief; providing when a landlord's liability for damages begins; providing that a tenant may withhold payment of rent in certain circumstances; providing procedure for withholding payment of rent; prescribing method for recovery of attorney fees and other damages; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 41 O.S. 2021, Section 121, as amended by Section 1, Chapter 230, O.S.L. 2022 (41 O.S. Supp. 2025, Section 121), is amended to read as follows:

Section 121. A. Except as otherwise provided in this act, if there is a material noncompliance by the landlord with the terms of

1 the rental agreement or a noncompliance with any of the provisions
2 of Section 118 of this title which noncompliance materially affects
3 health or safety, the tenant may deliver to the landlord a written
4 notice specifying the acts and omissions constituting the breach and
5 that the rental agreement will terminate upon a date not less than
6 thirty (30) days after receipt of the notice if action to correct
7 the breach is not remedied has not meaningfully begun within
8 fourteen (14) days, and thereafter the ~~rental agreement shall so~~
9 ~~terminate as provided in the notice unless the landlord adequately~~
10 ~~remedies the breach within the time specified~~ tenant may terminate
11 or bring an action in court to enforce an obligation of the
12 landlord.

13 1. A tenant may not bring an action under this title unless the
14 following conditions are met:

- 15 a. the tenant gives the landlord written notice of the
16 landlord's noncompliance with a provision of this
17 title,
- 18 b. the landlord has been given a reasonable amount of
19 time, not to exceed fourteen (14) days, to make
20 repairs or provide a remedy of the condition described
21 in the tenant's notice. The tenant may not prevent
22 the landlord from having access to the rental premises
23 to meaningfully begin to make repairs or to
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1 meaningfully begin to provide a remedy to the
2 condition described in the tenant's notice, and
3 c. the landlord fails or refuses to repair or remedy the
4 condition described in the tenant's notice.

5 2. If the tenant is the prevailing party in an action under
6 this section, the tenant may obtain any of the following, if
7 appropriate under the circumstances:

- 8 a. actual damages and consequential damages,
9 b. injunctive relief,
10 c. damage equivalent to two (2) months' rent, and
11 d. any other remedy appropriate under the circumstances.

12 3. The landlord's liability for damages begins when:

- 13 a. the landlord has notice or actual knowledge of
14 noncompliance, and
15 b. the landlord has:
16 (1) refused to remedy the noncompliance, or
17 (2) failed to meaningfully begin to remedy the
18 noncompliance within a reasonable amount of time,
19 not to exceed fourteen (14) days, following the
20 notice or actual knowledge.

21 B. Except as otherwise provided in this act, if there is a
22 material noncompliance by the landlord with any of the terms of the
23 rental agreement or any of the provisions of Section 118 of this
24 title which noncompliance materially affects health and the breach

1 is remediable by repairs, the reasonable cost of which is equal to
2 or less than one month's rent, the tenant may notify the landlord in
3 writing of his or her intention to correct the condition at the
4 landlord's expense after the expiration of fourteen (14) days. If
5 the landlord fails to meaningfully begin to comply within said
6 fourteen (14) days, or as promptly as conditions require in the case
7 of an emergency, the tenant may thereafter cause the work to be done
8 in a workmanlike manner and, after submitting to the landlord an
9 itemized statement, deduct from his or her rent the actual and
10 reasonable cost or the fair and reasonable value of the work, not
11 exceeding the amount specified in this subsection, in which event
12 the rental agreement shall not terminate by reason of that breach.

13 If the cost of necessary repairs exceeds one month's rent, after
14 written notice stating the specific reason for the withholding, the
15 tenant may withhold payment of rent and immediately deposit it in a
16 separate bank or savings and loan account, written evidence of such
17 action to be provided to the landlord upon deposit, maintained only
18 for the purpose of making repairs until such time as the landlord
19 makes the repairs, at which time the tenant shall release the
20 deposit to the landlord or until sufficient money is accumulated in
21 the account for the tenant to cause the repairs to be made and paid
22 for.

23 C. Except as otherwise provided in this act, if, contrary to
24 the rental agreement or Section 118 of this title, the landlord

1 willfully or negligently fails to supply heat, running water, hot
2 water, electric, gas or other essential service, the tenant may give
3 written notice to the landlord specifying the breach and thereafter
4 may:

5 1. Upon written notice, immediately terminate the rental
6 agreement; or

7 2. Procure reasonable amounts of heat, hot water, running
8 water, electric, gas or other essential service during the period of
9 the landlord's noncompliance and deduct their actual and reasonable
10 cost from the rent; or

11 3. Recover damages based upon the ~~diminution of the fair rental~~
12 ~~value of the dwelling unit~~ landlord's noncompliance, at the
13 discretion of the court; or

14 4. Upon written notice, procure reasonable substitute housing
15 during the period of the landlord's noncompliance, in which case the
16 tenant is excused from paying rent for the period of the landlord's
17 noncompliance.

18 D. Except as otherwise provided in this act, if there is a
19 noncompliance by the landlord with the terms of the rental agreement
20 or Section 118 of this title, which noncompliance renders the
21 dwelling unit uninhabitable or poses an imminent threat to the
22 health and safety of any occupant of the dwelling unit and which
23 noncompliance is not remedied as promptly as conditions require, the
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1 tenant may immediately terminate the rental agreement upon written
2 notice to the landlord which notice specifies the noncompliance.

3 E. 1. The prevailing party in any action brought under this
4 section may recover reasonable attorney fees under the provisions of
5 Section 105 of this title.

6 2. If any action is brought under this section, or Sections 131
7 or 132 of this section, and the action is found to have been brought
8 in bad faith, the prevailing party may recover damages equivalent to
9 two (2) months' rent.

10 F. All rights of the tenant under this section do not arise
11 until he or she has given written notice to the landlord or if the
12 condition complained of was caused by the deliberate or negligent
13 act or omission of the tenant, a member of his or her family, his or
14 her animal or pet or other person or animal on the premises with his
15 or her consent.

16 SECTION 2. This act shall become effective November 1, 2026.

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